

[doc. web n. 10066215]
Provision of September 26, 2024
Register of provisions
n. 587 of September 26, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, regarding
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003,
containing the Code regarding the protection of personal data (hereinafter, "Code");

HAVING REGARD to Regulation No. 1/2019 concerning
internal procedures of external relevance,
aimed at carrying out the tasks and
exercising the powers assigned to the Guarantor for the
protection of personal data, approved by
resolution No. 98 of 04/04/2019, published in
G.U. No. 106 of 08/05/2019 and on www.gdpd.it, doc. web
n. 9107633 (hereinafter "Regulation No. 1/2019");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000 on the
organization and functioning of the office of the Guarantor for the
protection of personal data (doc. web n. 1098801);

REPORTING Prof. Ginevra Cerrina Feroni;

PREMISED

1. The complaint.

With a complaint submitted pursuant to Article 77 of
the Regulation, Mr. XX complained about the lack of
response from the Ministry of the Interior -
Prefecture of Rome (hereinafter, "Ministry" or
"Prefecture") and the ASL of Rome 1 (hereinafter,
"ASL"), to a request submitted pursuant to Article
17 of the Regulation, regarding the exercise of the right
to erasure of his personal data.

In particular, on February 7, 2023, the
complainant requested the Prefecture and the ASL
"the erasure of personal data from the databases of
the Prefecture and ASL in charge," stating that
"On 09.09.2009, the Municipal Police of [omitted]
withdrew my driving license because

(...) I was in a state of intoxication. Thirteen (13) years have passed since then, and I have diligently followed the complete rehabilitation process provided by Italian law. I am not a repeat offender (...) but my personal data are still present in the Prefecture's lists related to this offense. To date, neither the ASL nor the Prefecture have taken steps to remove such personal data, in an endless passing of responsibility and competencies."

The complainant attached, in this regard, a copy of the judgment of prescription of the offense issued by the competent Court.

On February 15, 2023, the ASL responded to the interested party stating the impossibility of "proceeding (...) with the erasure of the data held by the Local Medical Commission Rome 1^ as the current regulations stipulate that the relevant file must be kept for at least twenty years. Since this is a case closed in 2019, the erasure of the data cannot occur before 2039." No response to the aforementioned request for the exercise of rights was received from the Ministry of the Interior.

2. The investigative activity.

That being said, with a note dated April 11, 2023, the Authority made a request for information to the Ministry pursuant to Article 157 of the Code, aimed at acquiring any useful element for the evaluation of the case, also inviting the Ministry, pursuant to Article 15 of Regulation No. 1/2019, to adhere to the request for the exercise of rights submitted by the complainant. Subsequently, with a note dated April 27, 2023, the Prefecture informed the Authority that it had "ordered the medical review of Mr. XX, the provisional suspension of the validity of the driving license, and has proceeded, as provided by Article 223, paragraph 1, to update the National Registry," declaring that it had "limited itself exclusively to entering the data in the aforementioned Registry which is not accessible to third parties, but only to authorized administrative personnel."

However, lacking evidence of any response from the Ministry to the request for the exercise of rights submitted by the complainant, the Authority, with a note dated May 20, 2023, made a further request for information, following which the Ministry, with a note dated July 17, 2023, provided the necessary response, informing the complainant that it had "proceeded to enter the data exclusively" in the national registry of driving license holders, which "is not accessible to third parties, but only to authorized administrative personnel" and that, moreover, there is "no 'list' published on its institutional website."

Based on the elements acquired, the Office notified the Ministry of the Interior – Prefecture of Rome, with a note dated October 20, 2023, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, contesting the Ministry for the violation of Articles 12, paragraphs 1, 3, and

4, of the Regulation, for having responded late to the request for the exercise of rights submitted by the complainant pursuant to the aforementioned Article 17.

In this context, the Office invited the Ministry

to produce defensive writings or documents or to request to be heard by the Authority (art. 166, paragraphs 6 and 7, of the Code; as well as art. 18, paragraph 1, of Law No. 689 of November 24, 1981). The Ministry, therefore, with a note dated October 6, 2023, transmitted its defensive memoranda, representing, in particular, that:

- “the office, as per the regulatory provision (art. 223, paragraph 1 of the Highway Code, but see also art. 226, paragraphs 10 and following, and, in particular, paragraph 12 which explicitly mentions the prefectures), has, among other things, fulfilled the obligation to communicate to the national register of driving license holders”;

- “the register is not freely accessible by third parties: no personal data can be extracted; thus, no infringement of the right to privacy is conceivable. The right to be forgotten is only justified if there is a public potentially able to capture the information - an aspect entirely absent in the dispute at hand. Moreover, consistently with what has just been stated, EU Reg. 679/16, in art. 17, paragraph 3, after recognizing the right to be forgotten, delineates its boundaries, providing, as relevant here, that this legal position may be set aside ‘for the fulfillment of a legal obligation [...] or for the performance of a task carried out in the public interest or in the exercise of public powers vested in the data controller’ (letter b)) and ‘for reasons of public interest in the area of public health’ (letter c) of the same paragraph”;

- “a positive response to the request from the party cannot be given, since the prefectural administration, in processing that personal data, has: - fulfilled a legal obligation (art. 17, paragraph 3, letter b) first part of the cited EU Reg., in conjunction with art. 223, paragraph 1 of the Highway Code); - carried out an activity of public relevance (art. 17, paragraph 3, letter b) at the end); - satisfied public health interests (art. 17, paragraph 3, letter c) in connection with art. 9)”;

- “the right to be forgotten was exercised by the private party with a request dated February 7, 2023; this was followed by the response from this administration on April 27, 2023. It is true that the 30-day timeframe provided for in art. 12, paragraph 3 of the EU Reg. was not respected, but, given the limited human and material resources affecting the office, having exceeded the limit while remaining within the maximum framework set by the regulations (30 ordinary days + 60 days of extraordinary extension) can be considered a minor omission, excusable or, at least, slightly culpable. This is even more true considering that the interested party is a single individual and that the purposes and the subject of the processing pertain to public aspects of certain relevance, as indicated above”;

- “a corrective measure was promptly adopted, consisting of sending a more detailed and articulated response to the request from the party [...]; this was intended to eliminate any possible private prejudice”;

- “the unfoundedness of the merits of the request from the party for the reasons indicated can only be an element to be taken into account”.

Subsequently, on February 19, 2024, the hearing requested by the Ministry with a note dated November 20, 2023, took place, during which the Ministry further clarified that:

- “the offices of the Prefecture are called upon to process personal data within a high number of administrative proceedings, relating, moreover, to multiple areas of intervention, due to the broad powers attributed to the Prefecture; in this context, it is also highlighted that the request to exercise rights submitted by the complainant does not fall within the ordinary activities carried out daily by the Prefecture and, for this reason, was probably not immediately framed in the proper terms; it is also noted that the request to exercise rights submitted by the complainant is the first received by this Office of the Prefecture”;

- “during the period in question [...] the Office of the Prefecture concerned by the complainant's request

was temporarily headed by another Director - who simultaneously directed another equally strategic area - in place of the head of the Office; [...] like many other administrations, the aforementioned Office is affected by a lack of personnel”;

- “in December 2023, the Minister of the Interior adopted a regulation regarding the processing of personal data (see decree of December 15, 2023, concerning the regulation of the organizational structure of the bodies and subjects in the matter of personal data processing); moreover, the Prefecture, also in light of the investigation initiated by the Authority, deemed it appropriate to raise awareness among all managers and employees regarding the regulations on personal data processing and the related obligations”;

- “in addition to the difficulties mentioned above, [...] it is highlighted, on the merits, that in the form transmitted by the complainant, the request for communication to the complainant pursuant to art. 12, paragraph 4, of the Regulation was not flagged, and this led the Prefecture not to consider the 30-day term for the response as peremptory, given that, from a substantial point of view, the cancellation request made by the complainant could not have been legitimately accepted. This is because the indication of the deadline for the renewal of the driving license remains recorded in the ‘National Register of Driving License Holders’, serving as an alert for the validity of the license itself. The deadline for the renewal of suspended licenses is set at the discretion of the competent medical commission and remains visible until the individual is issued a license.

implemented measures to improve compliance with data protection regulations;

it is deemed appropriate to apply a corrective measure in the form of a warning, rather than a more severe sanction.

5. Recommendations.

In light of the findings and conclusions drawn from the investigation, it is recommended that the Ministry of the Interior take the following actions:

5.1. Ensure timely responses to requests for the exercise of rights under the applicable data protection regulations, in accordance with Article 12, paragraphs 1, 3, and 4 of the Regulation.

5.2. Provide training for staff involved in handling personal data requests to ensure compliance with legal obligations and to enhance awareness of data protection principles.

5.3. Review and, if necessary, revise internal procedures related to the management of personal data requests to prevent future violations.

5.4. Establish a monitoring mechanism to ensure that all requests are processed within the stipulated timeframes and that the rights of data subjects are upheld.

6. Final Remarks.

The Ministry of the Interior is encouraged to take these recommendations seriously and to implement the necessary changes promptly. The protection of personal data is a fundamental right, and adherence to the applicable regulations is essential for maintaining public trust and ensuring the integrity of the administrative process.

****PREMISE****

- It has been ensured that all executives and employees are aware of the regulations regarding the processing of personal data and the related obligations;

- There are no previous relevant violations committed by the data controller or prior measures referred to in Article 58 of the Regulation;

- The circumstances of the specific case lead to classifying this instance as a "minor violation," pursuant to recital 148 of the Regulation and the "Guidelines on the application and setting of administrative monetary penalties for the purposes of Regulation (EU) No. 2016/679," adopted by the Article 29 Working Party on October 3, 2017, WP 253, and endorsed by the European Data Protection Board with "Endorsement 1/2018" of May 25, 2018.

It is therefore considered, regarding the case at hand, that it is sufficient to warn the data controller

pursuant to Articles 58, paragraph 2, letter b), and 83, paragraph 2, of the Regulation, for having violated Article 12, paragraphs 1, 3, and 4, of the Regulation.

Considering that the conduct has exhausted its effects, the prerequisites for the adoption of further corrective measures under Article 58, paragraph 2, of the Regulation do not exist.

Finally, it is noted that the prerequisites referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Authority, are met.

****ALL OF THE ABOVE CONSIDERED, THE AUTHORITY****

a) pursuant to Article 57, paragraph 1, letter f), declares the conduct of the Ministry of the Interior, located at Palazzo del Viminale, C.F. 97149560589, 00184, Rome, illegal, as described in the reasoning, consisting of the violation of Article 12, paragraphs 1, 3, and 4, of the Regulation;

b) pursuant to Article 58, paragraph 2, letter b), of the Regulation, warns the Ministry of the Interior, as the data controller in question, for having violated Article 12, paragraphs 1, 3, and 4, of the Regulation, as described above;

c) believes that the prerequisites referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Authority, are met.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, an appeal against this measure may be brought before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the measure itself or within sixty days if the appellant resides abroad.

Rome, September 26, 2024

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Cerrina Feroni

****THE SECRETARY GENERAL****

Mattei